SYSTEM ANNOTATED REFERENCE CONTRACT 05: STUDIO PRODUCER & SPLIT-SHEET AGREEMENT (BALANCED BENCHMARK)

> SYSTEM METADATA & EVALUATION HEADER
> - Document ID: SYS-ANNOT-05
> - Contract Type: producer (Studio Production, Beat Commissioning & Songwriting Split-Sheet Agreement)
> - Jurisdiction: KE (Republic of Kenya)
> - Counterparties: Boma Sound Labs Limited (trading as "Kazi Beats") ("Producer") and Amina Wanjiru p/k/a "Mina W." ("Artist")
> - Primary Reference Standards Cited:
> - KECOBO-PROD-STD-01: Kenya Copyright Board (KECOBO) Advisory Copyright Contract Manual · Music Producer & Split-Sheet Agreement Standard (CC BY 4.0 / Statutory Guidance)
> - KE-CAP130-SEC22-32: Kenya Copyright Act, Cap. 130 (Sound Recording Ownership, Joint Authorship of Musical Works & Moral Rights)
> - WIPO-PROD-STD-05: WIPO How to Make a Living from Music · Commissioned Producer & Royalty Points Standard (CC BY 4.0)
> - Overall Risk Profile: Zero / Minimal Exploitation · Gold-Standard Positive Benchmark (Teaches the system to accurately recognize matches_standard and better_for_you clauses in a balanced Kenyan studio production and split-sheet deal without false-positive warnings.)

PREAMBLE AND RECITALS

THIS STUDIO PRODUCER AND SONGWRITING SPLIT-SHEET AGREEMENT (this "Agreement") is made on the 9th day of December, 2026 (the "Effective Date") between AMINA WANJIRU, professionally known as "Mina W.", of P.O. Box 88210-00200, Nairobi, Kenya (the "Artist"), and BOMA SOUND LABS LIMITED (trading as "Kazi Beats"), of Kindaruma Road, Kilimani, P.O. Box 50118-00100, Nairobi, Kenya (the "Producer").

WHEREAS, the Artist has commissioned the Producer to compose an original instrumental beat, record the Artist's vocals, and mix and master the single titled "Jua Kali" (the "Track") on the transparent terms set out herein.

CLAUSE 1: PRODUCTION FEE AND FULL STEM DELIVERY

1.1 Fixed Production Fee and Full Stem Delivery. In consideration of the Producer's studio production, mixing, and mastering services, the Artist shall pay the Producer an all-inclusive Production Fee of Kenya Shillings Sixty Thousand (KES 60,000) on a gross basis: fifty percent (50%) (KES 30,000) upon booking the first studio session and fifty percent (50%) (KES 30,000) upon the Producer's delivery to the Artist of the final 24-bit WAV Master, instrumental mix, acapella vocal stem, and separated multi-track audio stems.

> [EXPERT LEGAL & MBIU SYSTEM ANNOTATION · CLAUSE 1.1]
> - Clause ID: 1.1 | Topic: royalties | Affects: money
> - Drafted For: neutral | Comparison Outcome: matches_standard | Mbiu Label: typical | Implication: none
> - Reference Standard Benchmark (KECOBO-PROD-STD-01): "The Artist shall pay the Producer 50% of the agreed Production Fee upon commencement of recording and the remaining 50% upon delivery of the final master WAV file, instrumental version, acapella, and separated multi-track audio stems."
> - Mbiu Verified Card Fields:
> - headline: "50/50 studio fee with full audio stems"
> - key_quote: "fifty percent (50%) (KES 30,000) upon booking the first studio session and fifty percent (50%) (KES 30,000) upon the Producer's delivery to the Artist of the final 24-bit WAV Master, instrumental mix, acapella vocal stem, and separated multi-track audio stems."
> - what_it_says: "You pay a KES 60,000 gross fee. You pay KES 30,000 (50%) when booking the studio and KES 30,000 (50%) when you get the WAV master and all audio stems."
> - what_it_means: "You only pay the final 50% once you receive the master and all audio stems, which could help you prepare for live shows, remixes, and sync deals."
> - comparison_note: "Matches the KECOBO producer standard: 50% deposit upon studio booking and 50% upon full delivery of the master WAV and separated audio stems."
> - money_inputs: {"rate": 60000.0, "basis": "gross", "deductions": [], "quote": "all-inclusive Production Fee of Kenya Shillings Sixty Thousand (KES 60,000) on a gross basis"}

- money_comparison: {"contract_basis": "gross", "reference_basis": "gross", "contract_rate": "KES 60,000 gross (50% on booking / 50% on stem delivery)", "reference_rate": "50% gross on booking / 50% gross on stem delivery"}
- fairer_wording: "The Artist shall pay the Producer 50% of the agreed Production Fee upon commencement of recording and the remaining 50% upon delivery of the final master WAV file, instrumental version, acapella, and separated multi-track audio stems."
- ask_them: []

CLAUSE 2: 100% ARTIST OWNERSHIP OF MASTER & EXCLUSIVE BEAT PROTECTION

2.1 Artist Owns 100% of Master Sound Recording. Upon payment of the KES 60,000 Production Fee in full, the Artist shall own one hundred percent (100%) of all right, title, and interest (including all copyright under the Copyright Act, Cap. 130, Laws of Kenya) in and to the Master Sound Recording of "Jua Kali" throughout the world. The Producer further covenants that the instrumental beat created for "Jua Kali" is exclusive to the Artist and shall never be leased, sold, or licensed by the Producer to any other artist or third party.

[EXPERT LEGAL & MBIU SYSTEM ANNOTATION · CLAUSE 2.1]
- Clause ID: 2.1 | Topic: grant_of_rights | Affects: ownership
- Drafted For: artist | Comparison Outcome: matches_standard | Mbiu Label: typical | Implication: none
- Reference Standard Benchmark (KECOBO-PROD-STD-01): "Upon full payment of the commissioned Production Fee, the Artist shall be the sole owner of 100% of the copyright in the Master Sound Recording, and the Producer shall not re-lease or license the commissioned instrumental beat to any third party."
- Mbiu Verified Card Fields:
- headline: "You own 100% of the master & exclusive beat"
- key_quote: "Artist shall own one hundred percent (100%) of all right, title, and interest (including all copyright under the Copyright Act, Cap. 130, Laws of Kenya) in and to the Master Sound Recording"
- what_it_says: "Once you pay the KES 60,000 fee, you own 100% of the master rights in 'Jua Kali'. The Producer also promises never to sell or lease the beat to anyone else."
- what_it_means: "You could distribute and monetize your recording on all platforms with full control, and no other artist could release a song using the same beat."
- comparison_note: "Matches the KECOBO commissioned producer standard, vesting 100% master rights in the paying artist and prohibiting the producer from reselling the beat."
- jargon_definitions: {"master rights": "Ownership of the final sound recording of a song, giving you the right to upload, distribute, and license the audio file."}
- fairer_wording: "Upon full payment of the commissioned Production Fee, the Artist shall be the sole owner of 100% of the copyright in the Master Sound Recording, and the Producer shall not re-lease or license the commissioned instrumental beat to any third party."
- ask_them: []

CLAUSE 3: PRODUCER MASTER ROYALTY AND 50/50 SONGWRITING SPLIT SHEET

3.1 Producer Royalty (4% of Gross After Recoupment). In addition to the KES 60,000 Production Fee (which shall be treated as a recoupable advance against Producer royalties), the Artist shall pay (or direct the Artist's digital distributor via a Letter of Direction to pay) to the Producer a royalty of four percent (4%) of Gross Receipts (with the Artist retaining ninety-six percent (96%) of Gross Receipts) received from digital streaming, downloads, and Skiza Tunes exploitation of the Master, payable semi-annually within 60 days after 30th June and 31st December once the KES 60,000 Production Fee has been recouped.

3.2 50/50 Musical Composition (Publishing) Split Sheet. Because the Artist wrote the lyrics and vocal melody and the Producer composed the original instrumental music, the copyright and publishing income in the underlying musical composition of "Jua Kali" shall be co-owned equally as a work of joint authorship under the Copyright Act (Cap. 130): fifty percent (50%) by the Artist and fifty percent (50%) by the Producer. Each Party may register its respective 50% share directly with KECOBO and MCSK, and neither Party shall grant a commercial brand synchronization license for the Track without the other Party's written consent (not to be unreasonably withheld).

[EXPERT LEGAL & MBIU SYSTEM ANNOTATION · CLAUSE 3.1]
- Clause ID: 3.1 | Topic: royalties | Affects: money
- Drafted For: neutral | Comparison Outcome: matches_standard | Mbiu Label: typical | Implication: none

- Reference Standard Benchmark (WIPO-PROD-STD-05): "An independent music producer typically receives a producer royalty of 3% to 4% of Gross Receipts (leaving 96% to 97% of Gross Receipts to the Artist) from exploitation of the Master, payable semi-annually within 60 days after recoupment of the upfront production fee advance."
- Mbiu Verified Card Fields:
- headline: "Standard 4% gross producer royalty"
- key_quote: "royalty of four percent (4%) of Gross Receipts (with the Artist retaining ninety-six percent (96%) of Gross Receipts) received from digital streaming, downloads, and Skiza Tunes"
- what_it_says: "You keep 96% of Gross Receipts and pay a 4% gross royalty on streams and Skiza. Payments start within 60 days after the KES 60,000 recoupable fee is paid back."
- what_it_means: "You could recover your KES 60,000 studio fee first before any producer royalties start, and then share 4% of gross streaming and Skiza income with the Producer."
- comparison_note: "Matches the WIPO producer standard of 3% to 4% of gross receipts payable semi-annually within 60 days after recoupment of the upfront studio fee."
- money_inputs: {"rate": 96.0, "basis": "gross", "deductions": ["four percent (4%) of Gross Receipts"], "quote": "royalty of four percent (4%) of Gross Receipts (with the Artist retaining ninety-six percent (96%) of Gross Receipts)"}
- money_comparison: {"contract_basis": "gross", "reference_basis": "gross", "contract_rate": "96% to Artist / 4% to Producer on Gross Receipts", "reference_rate": "96% to 97% to Artist / 3% to 4% to Producer on Gross Receipts"}
- jargon_definitions: {"recoupable": "The KES 60,000 upfront fee is recovered first before the 4% producer royalty starts paying out.", "recoupment": "Recovering the upfront studio fee from initial royalties before ongoing royalty splits begin."}
- fairer_wording: "An independent music producer typically receives a producer royalty of 3% to 4% of Gross Receipts (leaving 96% to 97% of Gross Receipts to the Artist) from exploitation of the Master, payable semi-annually within 60 days after recoupment of the upfront production fee advance."
- ask_them: []

[EXPERT LEGAL & MBIU SYSTEM ANNOTATION · CLAUSE 3.2]
- Clause ID: 3.2 | Topic: grant_of_rights | Affects: ownership
- Drafted For: neutral | Comparison Outcome: matches_standard | Mbiu Label: typical | Implication: none
- Reference Standard Benchmark (KECOBO-PROD-STD-01): "Where the vocal artist writes the lyrics/melody and the producer composes the original beat, the underlying musical composition copyright shall be shared 50% to the Artist and 50% to the Producer on a signed Split Sheet for MCSK and KECOBO registration."
- Mbiu Verified Card Fields:
- headline: "Equal 50/50 songwriting & publishing split"
- key_quote: "co-owned equally as a work of joint authorship under the Copyright Act (Cap. 130): fifty percent (50%) by the Artist and fifty percent (50%) by the Producer."
- what_it_says: "The songwriting copyright (lyrics and beat) is split 50% to you and 50% to the Producer for MCSK and KECOBO registration. Both sides approve any sync deal."
- what_it_means: "You and the Producer could each collect your own 50% songwriting share from MCSK, and neither side can license the song for a brand ad without the other's consent."
- comparison_note: "Matches the KECOBO split-sheet standard, where the lyricist/vocalist and the beat composer share the underlying musical composition 50% / 50%."
- fairer_wording: "Where the vocal artist writes the lyrics/melody and the producer composes the original beat, the underlying musical composition copyright shall be shared 50% to the Artist and 50% to the Producer on a signed Split Sheet for MCSK and KECOBO registration."
- ask_them: []

CLAUSE 4: MORAL RIGHTS CREDIT, SAMPLE WARRANTY AND MUTUAL AUDIT

4.1 Producer Credit and Moral Rights. Pursuant to Section 32 of the Copyright Act (Cap. 130), both the Artist and the Producer retain their Moral Rights. The Artist shall credit the Producer as "Produced by Kazi Beats" in all DSP metadata and YouTube descriptions.

4.2 No Uncleared Samples Warranty & Mutual Audit. The Producer warrants that the instrumental beat is one hundred percent (100%) original and contains no uncleared third-party audio samples or loops, and shall indemnify the Artist against any copyright takedown or third-party claim if an uncleared sample was used by the Producer. Each Party shall have the right once per year upon 30 days written notice to inspect the other Party's royalty statements relating to the Track, and either Party may terminate any breached license upon 30 days written notice if a material breach or non-payment is not cured. This Agreement is governed by the laws of Kenya.

[EXPERT LEGAL & MBIU SYSTEM ANNOTATION · CLAUSE 4.2]

> - Clause ID: 4.2 | Topic: warranties_indemnities | Affects: money
> - Drafted For: artist | Comparison Outcome: better_for_you | Mbiu Label: typical | Implication: none
> - Reference Standard Benchmark (KECOBO-PROD-STD-01): "The Producer warrants that the beat is 100% original and free of uncleared third-party samples, and shall provide an indemnity to the Artist against any third-party infringement claims arising from the instrumental production, alongside mutual annual audit rights on 30 days written notice."
> - Mbiu Verified Card Fields:
> - headline: "Producer protects you from sample claims"
> - key_quote: "warrants that the instrumental beat is one hundred percent (100%) original and contains no uncleared third-party audio samples or loops, and shall indemnify the Artist"
> - what_it_says: "The beat is 100% original with no old samples. The Producer gives an indemnity for sample claims, and both sides get audit rights on 30 days notice."
> - what_it_means: "If the beat secretly uses someone else's sample and your song gets taken down or sued, the Producer could be responsible for covering the cost, not you."
> - comparison_note: "Matches and strengthens the KECOBO producer standard by combining a strict no-uncleared-samples indemnity with mutual annual audit rights on 30 days notice."
> - jargon_definitions: {"indemnity": "A promise by one party to pay for the other person's losses or legal costs if a specific promise is broken.", "audit rights": "The right to inspect accounting records once a year to confirm royalty numbers are accurate."}
> - fairer_wording: "The Producer warrants that the beat is 100% original and free of uncleared third-party samples, and shall provide an indemnity to the Artist against any third-party infringement claims arising from the instrumental production, alongside mutual annual audit rights on 30 days written notice."
> - ask_them: []

WHOLE-CONTRACT MAP & REVERSE-CHECK ANNOTATIONS (SYSTEM CONTEXT)

1. Contract-Wide Issues (contract_map.issues)

- None ([]): All clauses in SYS-ANNOT-05 are mutually consistent with zero cross-clause overrides or contradictions.

2. Missing Protections (missing_from_contract)

- None ([]): All 5 core protective patterns (audit_rights, accounting_frequency, termination_on_breach, written_approval_deductions, and rights_reversion / 100% upfront Master ownership) are satisfied.

SIGNATURES

SIGNED by the ARTIST (AMINA WANJIRU p/k/a "Mina W."): _____ | Date: 9th December, 2026

SIGNED for BOMA SOUND LABS LTD ("Kazi Beats"): _____ | Date: 9th December, 2026